

PAINTBOOKCO.

The PaintBook Company Ltd

Terms of Service

Company Number: 16690724

Registered in England and Wales

Version 1.0 | April 2026

Effective Date: 10th April 2026

Plain English Summary

These Terms of Service govern your use of the PaintBookCo platform. We have drafted them to be as clear as possible. Here is a brief summary of the key points — but please read the full terms below, as they contain important detail.

Key Points at a Glance

PaintBookCo is a marketplace connecting customers with verified painters and decorators. We are not a painting company and we do not employ painters.

Painters must complete full registration and KYC verification before they can receive any jobs through the Platform.

There are no subscription fees. Painters pay commission only when a job is completed — 12% on the first 5 jobs, 10% on the next 5, and 8% thereafter.

All payments go through Transact, our FCA-authorised escrow partner. This protects both parties. PaintBookCo bears the Transact escrow cost — this is not charged to painters or customers.

Commission is earned by PaintBookCo at the point of customer payment. It is deducted automatically before the job starts. Commission is only refunded where the reason for cancellation or refund is PaintBookCo's fault or the fault of our painter — for example, if we cannot provide a painter, or a painter fails to perform and we cannot provide another painter to complete the job. Commission is not refunded simply because a customer changes their mind or a dispute arises.

No automatic payments. Funds are only released when the customer confirms completion on the Platform. Any reversal or cancellation requires manual PaintBookCo admin approval.

Sharing contact details (phone numbers, email addresses, physical addresses) in the Platform chat is strictly prohibited. Doing so to transact off-platform is a serious breach of these Terms.

PaintBookCo is not liable for the quality of work performed by painters. Disputes are handled through our dispute resolution process.

These Terms are governed by the laws of England and Wales.

1. About PaintBookCo and These Terms

1.1 Who We Are

The PaintBook Company Ltd (trading as PaintBookCo) is a company incorporated in England and Wales, Company Number 16690724. We operate the PaintBookCo platform at paintbookco.co.uk (the 'Platform'), which is a two-sided digital marketplace exclusively for painters, decorators, and the customers who hire them.

PaintBookCo is not a painting or decorating company. We do not employ painters or decorators. We provide technology infrastructure that connects independent professional painters with customers, and we facilitate secure payment through our FCA-authorised escrow partner. The contract for the provision of painting services is directly between the customer and the painter, not between either party and PaintBookCo.

1.2 Acceptance of Terms

By registering for an account on the Platform, you confirm that you have read, understood, and agree to be bound by these Terms of Service ('Terms'), our Privacy Policy, and our Cookie Policy. If you do not agree to these Terms, you must not use the Platform.

These Terms apply to all users of the Platform, including customers posting jobs, painters registering to offer services, and any visitor browsing the Platform.

1.3 Changes to These Terms

We may update these Terms from time to time. When we make material changes, we will notify you by email and/or by posting a notice on the Platform. Your continued use of the Platform after the effective date of updated Terms constitutes your acceptance of those changes. If you do not accept the updated Terms, you must stop using the Platform.

The current version of these Terms is always available at paintbookco.co.uk/terms.

2. Definitions

In these Terms, the following words have the meanings set out below:

Term	Meaning
'Platform'	The PaintBookCo website at paintbookco.co.uk and any associated services, tools, and features.
'We', 'us', 'our'	The PaintBook Company Ltd (Company Number: 16690724).
'You', 'your'	Any registered user of the Platform, whether a customer, painter/decorator, or visitor.
'Customer'	A person or organisation that registers on the Platform to post a job and hire a painter or decorator.
'Painter' or 'Painter/Decorator'	A professional painter or decorator who registers on the Platform to offer their services and receive jobs.

'Job'	A specific painting or decorating project posted by a customer on the Platform.
'KYC'	Know Your Customer — the identity and credential verification process that all painters must complete before becoming active on the Platform.
'Escrow'	The secure holding of customer funds by Transpact (our FCA-authorised escrow partner) pending job completion and release approval.
'Transpact'	Anpa Forward Ltd, trading as Transpact, FCA-authorised payment service provider (FCA Ref: 546279), our escrow partner.
'Commission'	The fee payable by the painter to PaintBookCo upon agreement of job terms and payment by customer, calculated as a percentage of the agreed job value.
'Paint Vestimator'	PaintBookCo's proprietary AI-powered tool for estimating paint quantities, projecting costs, and visualising colour schemes.
'In-Platform Chat'	The job-scoped messaging system provided on the Platform for communication between matched painters and customers.
'Prohibited Content'	Content that violates these Terms, including personal contact information shared in the Platform chat.
'Services Agreement'	The contract for painting or decorating services formed directly between the customer and the painter upon job acceptance and escrow funding.

3. Accounts and Registration

3.1 Eligibility

To register for an account on the Platform, you must:

- Be at least 18 years of age
- Be a resident of the United Kingdom or, in the case of a business customer or painter, registered or operating in the United Kingdom
- Provide accurate, complete, and current information during registration
- Not be barred from using our services under applicable law

3.2 Account Security

You are responsible for maintaining the security of your account, including your password. You must not share your login credentials with any other person. You agree to notify us immediately at hello@paintbookco.co.uk if you become aware of any unauthorised use of your account.

PaintBookCo will not be liable for any loss or damage resulting from your failure to comply with these security obligations.

3.3 Accurate Information

You agree to provide accurate and truthful information at all times, including during registration, KYC, job posting, and any communications with PaintBookCo or other users. You must update

your account information promptly if it changes. We reserve the right to suspend or terminate accounts where we have reason to believe that information provided is inaccurate, misleading, or fraudulent.

3.4 One Account Per User

Each individual or business may hold only one account on the Platform in each capacity (one customer account and/or one painter account). Creating multiple accounts to circumvent suspensions, commission obligations, or any other Platform policy is a serious breach of these Terms.

4. Painter Registration and KYC Verification

4.1 KYC Requirement

All painters and decorators must successfully complete our KYC verification process before they are eligible to receive any jobs through the Platform. There are no exceptions to this requirement.

The KYC process is a core part of PaintBookCo's commitment to trust and safety. It protects customers and the integrity of the Platform. Commencement of KYC does not guarantee activation — approval is at PaintBookCo's discretion.

4.2 KYC Documents Required

To complete KYC, painters must upload the following documents through the Platform:

- Proof of identity — a valid passport or UK driving licence
- Proof of address — a utility bill or bank statement dated within the last 3 months
- Public liability insurance certificate — current and valid
- Trade qualifications or certifications (optional but encouraged)

Documents are reviewed by PaintBookCo. We will notify you by email of the outcome (approved or rejected with reasons) within a reasonable period. Approved painters are added to the active matching pool. Rejected painters may resubmit with corrected documentation.

4.3 KYC Obligations of Painters

By submitting KYC documents, you confirm that:

- All documents are genuine, current, and belong to you
- You are legally entitled to offer painting and decorating services in the United Kingdom
- Your public liability insurance is valid for the type of work you accept through the Platform
- You will notify PaintBookCo promptly if your insurance expires or your eligibility changes

Submitting fraudulent, altered, or falsified documents is a criminal offence and will result in immediate and permanent account termination, reporting to relevant authorities, and potential legal action.

4.4 Ongoing Compliance

Painter activation is not a one-time event. PaintBookCo reserves the right to request updated documents at any time, including upon insurance renewal. Painters who fail to maintain current, valid documentation may be suspended from the matching pool without notice.

5. How the Platform Works

5.1 Job Posting (Customers)

Customers post jobs on the Platform by providing details of the work required, including location, job type, approximate dimensions or scope, requested dates, and budget. Customers may optionally use the Paint Vestimator to generate an AI-assisted cost estimate and visualise colour options before posting.

A job posting does not create a contractual commitment. It is an invitation for eligible painters to express interest.

5.2 Automated Matching

Upon a customer posting a job, PaintBookCo's automated matching system identifies eligible painters based on:

- Geographic proximity — the job location falls within the painter's stated service radius
- Specialism — the painter's specialisms match the job type
- Availability — the painter's available dates overlap with the requested dates
- KYC status — only fully KYC-approved, active painters are eligible
- Account standing — painters with open unresolved disputes may be excluded

Up to five eligible painters are notified of a new job. Painters are ranked by average rating, completed job count, and response time. PaintBookCo does not guarantee that any specific painter will be notified of or accept any specific job.

5.3 Job Acceptance (Painters)

Notified painters may accept or decline a job through their dashboard. The first painter to accept a job is assigned to it. Once a job is accepted, remaining matched painters are notified that the job is no longer available.

A painter who accepts a job represents that they:

- Have the skills, experience, and qualifications to complete the work
- Are available on the requested dates
- Hold current public liability insurance covering the work
- Will communicate and engage with the customer professionally and through the Platform

5.4 Customer Payment and Escrow Funding

Upon a painter accepting a job, the customer is directed to make payment of the full agreed job value through Transpact, PaintBookCo's FCA-authorised escrow partner. Payment must be made before the job commences.

At the point of customer payment:

- PaintBookCo's commission is deducted automatically by Transpact in accordance with these Terms
- The remaining balance (net of commission) is held in escrow by Transpact for the painter
- The job is confirmed and the Platform chat channel opens between the painter and customer
- PaintBookCo sends both parties official contact details via a system-generated email — this is the only mechanism by which contact details are exchanged

A Services Agreement between the customer and the painter is formed at the point of escrow funding. From this point, both parties have contractual obligations to each other in respect of the job.

5.5 Job Completion and Payment Release

When the painter has completed the work, they mark the job as complete in their dashboard. The customer then reviews the work and, if satisfied, confirms completion on the Platform. Customer confirmation triggers PaintBookCo to instruct Transpact to release the escrowed funds to the painter.

If the customer neither confirms nor disputes within 48 hours of job completion being marked, funds are automatically released to the painter.

Critical Rule — No Automatic Payment Release

Escrowed funds are NEVER released automatically.

Release requires explicit customer confirmation of job completion on the Platform.

Any reversal, cancellation, or dispute resolution requires manual approval from a PaintBookCo administrator.

PaintBookCo will not release funds without one of these two triggers: customer confirmation or admin-approved resolution.

Painters must not pressure customers to confirm completion prematurely. Doing so is a breach of these Terms.

5.6 Milestone Payments

For larger jobs, customers and painters may agree to split payment into milestones, each representing a defined phase of the work. Milestone amounts must be agreed in the job setup and must sum to the total agreed job value. The full gross amount (including PaintBookCo commission) is paid into Transpact escrow at the start of the job. Each milestone is released separately upon customer approval of that milestone's completion.

6. Commission and Fees

6.1 Commission Structure

PaintBookCo operates a tiered pay-per-job commission model. There are no subscription fees, listing fees, or upfront charges. Painters pay only upon successful job agreement and payment by customer. Commission rates are as follows:

Jobs Completed on Platform	Commission Rate	Example (£500 job)
Jobs 1–5 (first 5 completed)	12%	PaintBookCo: £60 Painter receives: £440
Jobs 6–10 (next 5 completed)	10%	PaintBookCo: £50 Painter receives: £450
Job 11 onwards	8%	PaintBookCo: £40 Painter receives: £460

Commission rates are calculated on the total agreed job value (excluding any separately agreed cost of materials where materials are not included in the Platform job value). Commission tiers are tracked per painter account and reset only upon account termination.

6.2 When Commission Is Taken

Commission is deducted at the point of customer payment, before the job commences. This is handled automatically by Transpact using the `OriginatorFixedCommissionOnSendToAll` parameter at the time the escrow transaction is created. PaintBookCo does not invoice painters separately for commission — the deduction is built into the payment flow. Commission is earned at the point of payment and is non-refundable except where the reason for cancellation or non-delivery is PaintBookCo's fault or the fault of a painter supplied by PaintBookCo (for example, PaintBookCo's inability to provide an eligible painter, or a painter who abandons the job without good cause). Commission is not refunded on customer-initiated cancellations, customer disputes, or any situation where the fault does not lie with PaintBookCo or its painter.

The commission deduction is irreversible once made, except in the specific circumstances set out in Section 9 (Cancellations and Reversals).

6.3 Transpact Transaction Fee

Transpact charges a flat fee per escrow transaction. PaintBookCo bears this escrow cost as part of providing the Platform service. This cost is not passed to customers or painters. Customers pay only the agreed job value. Painters receive the net job value after commission.

6.4 No Subscription, Listing, or Lead Fees

PaintBookCo does not charge painters subscription fees, listing fees, or fees for receiving job notifications. Painters who receive a job notification but decline it, or who are not selected, incur no charge of any kind.

6.5 Commission on Disputed or Cancelled Jobs

See Section 9 for the treatment of commission in the event of a cancellation, dispute, or reversal.

7. The Paint Vestimator Tool

7.1 Purpose and Use

The Paint Vestimator is PaintBookCo's AI-powered estimation tool designed to help customers calculate paint quantities, project costs, and visualise colour options. It is provided as an aid to decision-making and is not a guarantee of the actual cost, quantity of materials required, or final appearance of any painting job.

7.2 Accuracy and Limitations

The Paint Vestimator provides estimates based on the information you input and industry-standard coverage ratios. Actual results may vary depending on:

- Surface condition — walls with significant damage, texture, or previous dark colours may require additional coats and materials
- Paint brand and specific product — coverage ratios vary between products
- Application method — roller, brush, or spray application affects coverage
- Painter technique and skill level
- Accuracy of dimensions provided — the tool is only as accurate as the inputs given

PaintBookCo targets 95% accuracy for standard applications. However, estimates generated by the Paint Vestimator are not binding quotes. Painters are responsible for conducting their own assessment and providing their own professional quote before accepting a job.

7.3 Colour Visualisation

Colour visualisation features (currently provided through Floori API integration) allow customers to preview paint colours on uploaded images. Visualised results are representations only. Actual paint colours may appear differently depending on lighting, surface finish, screen calibration, and the specific paint product used. PaintBookCo does not guarantee that the visual preview accurately represents the final appearance.

7.4 Data from Vestimator Use

Anonymised and aggregated data from Vestimator usage (dimensions, paint quantities, regional pricing) is used to improve the accuracy of the tool over time. Personal data associated with Vestimator use is handled in accordance with our Privacy Policy.

8. Escrow, Payments, and PaintBookCo Commission

8.1 Mandatory Escrow

Use of Transpact escrow is mandatory for all jobs booked through the Platform. It is not optional. Customers may not pay painters directly outside the Platform's escrow system for any job sourced through PaintBookCo. Painters may not accept direct payment from customers for any job sourced through PaintBookCo. Circumventing the escrow requirement is a serious breach of these Terms (see also Section 11 — Platform Circumvention).

8.2 How Escrow Works

1. Customer posts a job. Painter is matched and accepts.
2. Customer pays the full agreed job value through the Platform. Payment is processed by Transpact.
3. PaintBookCo's commission is deducted automatically at the point of payment. The net amount is held by Transpact in escrow.

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4. Painter is notified that the job is funded and work may begin.
 5. Painter completes the work. Painter marks job complete on the Platform.
 6. Customer reviews and confirms job completion on the Platform.
 7. PaintBookCo instructs Transpact to release escrowed funds to the painter's nominated bank account.

8.3 Payment Responsibility

Customers are responsible for ensuring that the agreed job value submitted at the point of payment accurately reflects the scope of work agreed with the painter. PaintBookCo is not responsible for any discrepancy between the payment amount and the scope of work actually performed.

If the scope of work changes materially after escrow is funded, the customer and painter must agree any price adjustment and notify PaintBookCo. Additional payments for agreed scope changes may require a separate escrow transaction.

8.4 Transpact as Independent FCA-Authorised Provider

Transpact (Anpa Forward Ltd, FCA Ref: 546279) holds all escrowed funds as an independent, FCA-authorised payment service provider. PaintBookCo does not hold or have custody of customer funds. All fund-holding, safeguarding, and disbursement is managed by Transpact under their own regulatory obligations. By using the Platform, you agree to Transpact's own terms and conditions, which are available at transpact.com.

8.5 Payment Failure

If a customer's payment fails during the escrow funding process, the job will revert to 'awaiting payment' status. The painter will be notified. The job booking is not confirmed until escrow is successfully funded. PaintBookCo is not liable for any loss caused by a failed payment.

9. Cancellations, Reversals, and Dispute Resolution

9.1 The Golden Rule — Admin Approval Required

No automatic reversals or cancellations

All reversals, cancellations, and dispute resolutions involving escrowed funds require manual approval from a PaintBookCo administrator.

There are no circumstances under which funds are returned or redirected automatically without PaintBookCo admin involvement.

This protects both parties and ensures that every financial decision is reviewed by a human.

9.2 Cancellation Before Job Commencement

A job may be cancelled before work commences only with the agreement of both parties or in the circumstances set out below. For the purposes of this clause, "job commencement" is defined as follows, depending on the materials arrangement agreed between the parties at the time of booking:

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- Where materials are purchased solely by the customer: commencement is defined as the point at which the painter attends the property and begins any preparatory work (including surface preparation, masking, and moving furniture).
 - Where materials are purchased by the painter on the customer's behalf: commencement is defined as the earlier of (a) when the painter places the order for materials, or (b) when the painter attends the property. Once materials have been ordered by the painter, the job is treated as having commenced regardless of whether the painter has attended the site.
 - Where materials are purchased through the PaintBookCo platform: commencement is defined as the earlier of (a) when the platform order is placed and confirmed, or (b) when the painter attends the property. The customer bears any cancellation or return costs imposed by the supplier, and any delivery costs incurred, which will be deducted from the escrowed amount before any refund is processed.

A pre-commencement cancellation may arise in the following circumstances:

- The painter fails to make contact with the customer within 48 hours of escrow being funded
- The painter notifies the Platform that they are unable to proceed and the platform cannot provide another painter within 48 hours from that time.
- Both parties mutually agree in writing through the Platform chat to cancel

The customer wishes to withdraw from the transaction

Customer-Initiated Withdrawal (Pre-Commencement)

Where a customer wishes to withdraw from a confirmed, escrow-funded job before commencement (as defined above), the following applies. PaintBookCo's commission is retained in full. The painter receives a compensation payment from the net escrowed amount (after commission) calculated by reference to the notice given before the agreed start date. The remainder is refunded to the customer. Any material costs already incurred (supplier cancellation charges, delivery costs) are deducted from the customer's refund before it is processed.

Painter compensation sliding scale (calculated as a percentage of the net job value after commission):

- More than 7 calendar days before the agreed start date: 10% of net job value to painter.
Example: £500 job at 10% commission — painter receives £45, customer refunded £405.
- 3 to 7 calendar days before the agreed start date: 20% of net job value to painter.
Example: £500 job at 10% commission — painter receives £90, customer refunded £360.
- Less than 72 hours before the agreed start date: 30% of net job value to painter.
Example: £500 job at 10% commission — painter receives £135, customer refunded £315.

These compensation payments are made from the escrowed net amount and do not affect PaintBookCo's retained commission. Material costs (supplier cancellation or return fees, delivery charges) are deducted before calculating the remaining refund to the customer.

Painter-Initiated or PaintBookCo-Fault Pre-Commencement Cancellation

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- The customer will receive a full refund of the escrowed net amount. Commission is also refunded to the customer in full. See Section 9.5 commission treatment table.
 - Painter receives nothing if they cancel or fail to commence without good reason

The above is subject to whether the customer has acted in good faith.

9.3 Cancellation After Job Has Commenced — No Customer Refund

Once a job has commenced (as defined in Section 9.2 above), the customer is not entitled to a refund. The job must be completed, or the customer forfeits the full transaction amount paid. PaintBookCo's commission is retained in full. The only exception is where the reason for non-completion is attributable to irremediable incompetence by the painter, as set out in Section 9.3a below.

If a customer chooses not to approve completion of work that has been genuinely performed, or otherwise refuses to engage with the completion process, PaintBookCo reserves the right to release escrowed funds to the painter following review of the available evidence.

9.3a Painter Incompetence — PaintBookCo Remedy

Where a customer raises a complaint that the painter's work is of unacceptable quality, PaintBookCo will apply the following staged process:

1. The customer raises a quality complaint through the Platform with supporting evidence (photographs, description of defects).
2. PaintBookCo reviews the complaint. If PaintBookCo determines the work materially departs from the agreed scope and falls below a reasonable professional standard, PaintBookCo will offer the original painter an opportunity to remedy the defective work within 2 - 5 working days at no additional cost to the customer.
3. If the original painter declines the remediation opportunity, fails to complete remediation within the stated period, or PaintBookCo determines the incompetence is irremediable, PaintBookCo will arrange for a replacement painter from the Platform's matching pool to complete or redo the work.
4. The cost of the replacement painter's work is a commercial cost borne by PaintBookCo. The original painter's fee for the incomplete or defective portion of the work may be withheld by PaintBookCo to offset this cost. PaintBookCo's commission is retained.

Property Damage by the Painter — Insurance

Where a painter causes physical damage to the customer's property during a job (for example, paint spillage on flooring, a broken fixture, or damage to an adjacent surface), this is a matter between the customer and the painter's public liability insurer. Public liability insurance covers accidental damage to third-party property during the course of the painter's work. It does not cover the quality of the paint job itself, the cost of a replacement painter, or the customer's loss of time or convenience. Customers should contact the painter directly to make a claim on their public liability insurance, and may request the painter's insurance details through PaintBookCo at hello@paintbookco.co.uk. PaintBookCo is not a party to any insurance claim and accepts no liability for property damage caused by painters.

9.4 Dispute Resolution Process

Where a customer and painter cannot agree on whether a job has been completed satisfactorily, either party may raise a formal dispute through the Platform. The process is as follows:

8. The disputing party raises a dispute via their dashboard. All escrowed funds are immediately frozen.
9. PaintBookCo notifies both parties that a dispute has been raised. Both parties are given 2 working days to submit evidence.

10. Evidence must be submitted through the Platform and may include: photographs, Platform chat transcripts, milestone completion records, and written statements.
11. PaintBookCo reviews the evidence and issues a decision within 10 working days of the evidence deadline.
12. PaintBookCo's decision may be: full release to painter, full refund to customer, or split — a proportionate allocation at PaintBookCo's discretion.
13. PaintBookCo instructs Transpact to release or refund funds in accordance with the decision.
14. Both parties are notified of the outcome and the reasons for the decision.

PaintBookCo's dispute resolution decision is final for Platform purposes. It does not affect either party's right to pursue a legal remedy through the courts. PaintBookCo is not a formal arbitrator and our decisions do not constitute binding arbitration.

9.5 Commission in Dispute Situations

Scenario	Commission Treatment
Job completed and confirmed by customer	Commission retained by PaintBookCo — not refundable.
Pre-commencement cancellation — painter fault	Commission refunded in full to the customer. This is if PaintBookCo is unable to deliver the service through any of its other painters.
Pre-commencement cancellation — customer fault	Commission retained by PaintBookCo in full. Painter receives a sliding scale compensation (10% / 20% / 30% of net job value) depending on notice period given. See Section 9.2 for full detail and worked examples.
Dispute — full release to painter	Commission retained by PaintBookCo.
Dispute — full refund to customer	Commission retained by PaintBookCo unless PaintBookCo determines the dispute arose from painter fault or a failure on PaintBookCo's part. Commission is only refunded where PaintBookCo or its painter is responsible for the breakdown.
Dispute — partial split	Commission retained in full by PaintBookCo. Commission is earned at the point of payment regardless of split outcome, unless PaintBookCo determines painter fault warrants a refund.
PaintBookCo unable to provide a painter / platform error	Commission refunded in full to customer. This is the primary scenario in which commission is refunded — where the failure to deliver is on PaintBookCo's side.

10. Painter Obligations and Standards

10.1 Professional Standards

By registering as a painter on the Platform, you agree to:

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- Carry out all work to a professional standard appropriate to your stated experience and qualifications
 - Arrive on time and communicate promptly with customers through the Platform
 - Provide an honest and accurate assessment of the work required before accepting a job
 - Use materials appropriate to the job and in line with any specifications agreed with the customer
 - Leave the customer's property clean and in good order upon completion
 - Comply with all applicable health and safety regulations, including PPE requirements and safe working at height

10.2 Insurance

Painters must hold valid public liability insurance for the duration of their activity on the Platform, with a minimum level of cover of **£2,000,000 (two million pounds)**. This is the recognised industry standard for UK painting and decorating professionals and is a condition of your registration and continued use of PaintBookCo.

You must ensure your policy remains in force at all times while you have an active profile, open jobs, or pending payments on the Platform. You must notify PaintBookCo immediately if your insurance lapses, expires, or is cancelled for any reason. PaintBookCo reserves the right to suspend your account pending receipt of evidence of valid renewed cover, and to withhold payment releases until compliance is confirmed.

Painters working on higher-value residential properties or commercial premises are strongly encouraged to hold cover of **£5,000,000 (five million pounds)**, as some property managers, housing associations, and commercial clients require this as a contractual condition before granting site access.

Employers' Liability Insurance — If you engage subcontractors, apprentices, or any workers (whether full-time, part-time, or temporary), you are legally required under the **Employers' Liability (Compulsory Insurance) Act 1969** to hold employers' liability insurance with a minimum cover of **£5,000,000 (five million pounds)**. Failure to comply is a criminal offence and may result in fines of up to **£2,500 per day**. PaintBookCo will suspend accounts found to be operating without legally required employers' liability cover.

PaintBookCo also strongly recommends that painters hold **tools and equipment insurance** to protect against the loss, theft, or damage of trade equipment. While not a platform requirement, uninsured tool losses can disrupt job delivery and affect your reputation on the Platform.

PaintBookCo does not accept any liability for losses, claims, or damages arising from a painter's failure to maintain adequate insurance. Proof of insurance may be requested at any time, and PaintBookCo reserves the right to require painters to provide up-to-date certificates of insurance as a condition of continued platform access.

10.3 Accurate Portfolio and Profile

All photographs and project descriptions in your painter profile must:

- Be of work genuinely completed by you
- Accurately represent your current standard of work
- Not include images of work completed by others or sourced from the internet
- Not be AI-generated or digitally manipulated to misrepresent quality

PaintBookCo uses AI-assisted fraud detection to screen portfolio images. Submission of fraudulent portfolio content will result in immediate account termination.

10.4 Tax and Self-Employment Obligations

Painters registered on the Platform are independent contractors, not employees of PaintBookCo. You are solely responsible for:

- Registering as self-employed with HMRC (if not already registered)
- Declaring income earned through PaintBookCo on your Self Assessment tax return
- Paying Income Tax and National Insurance contributions due on your earnings
- Compliance with Making Tax Digital requirements as they apply to your income level

PaintBookCo does not provide tax advice. We recommend consulting a qualified accountant or visiting [hmrc.gov.uk](https://www.hmrc.gov.uk) for guidance.

11. Platform Circumvention — Strictly Prohibited

This is one of the most important sections of these Terms.

PaintBookCo's commercial model depends on all transactions for jobs sourced through the Platform being processed through the Platform's escrow system.

Any attempt to transact directly, share contact details in chat, or encourage off-platform payment is a serious breach and will result in permanent account termination.

11.1 Prohibition on Off-Platform Transactions

You must not, directly or indirectly:

- Contact or attempt to contact another Platform user outside of the Platform for the purpose of conducting or negotiating a transaction relating to a job sourced through PaintBookCo
- Pay or accept payment for a job sourced through PaintBookCo outside of the Platform's escrow system
- Encourage, request, or solicit another user to transact outside the Platform
- Share or solicit the sharing of personal contact information (phone numbers, email addresses, physical addresses, social media handles, messaging app identities) through the Platform chat or any other Platform feature

11.2 PII Filtering in Chat

To enforce the prohibition in Section 11.1, all messages sent through the Platform's in-platform chat are scanned in real time by automated filters before delivery. Messages that contain or appear to contain personal contact information are blocked and not delivered to the recipient.

You acknowledge and consent to this monitoring as a condition of using the Platform. Repeated attempts to share contact information through the chat system will result in account suspension and may result in permanent termination.

11.3 How Official Contact Details Are Shared

When a job is confirmed and escrow is funded, PaintBookCo will send both the customer and the painter their respective contact details via a single system-generated email. This is the only authorised mechanism for contact detail exchange. No contact details will be shared before escrow is funded and no contact details will ever be sent through the Platform chat.

11.4 Consequences of Platform Circumvention

In the event of a breach of this Section 11, PaintBookCo may, at its absolute discretion:

- Immediately suspend or permanently terminate the accounts of all involved parties
- Pursue a civil claim for damages equivalent to the lost commission on the circumvented transaction(s), including any commission on future jobs that PaintBookCo can demonstrate would reasonably have been conducted through the Platform
- Report the breach to relevant authorities where fraudulent activity is suspected
- Retain any escrowed funds pending investigation

12. Customer Obligations

12.1 Accurate Job Postings

Customers must provide accurate and complete information when posting a job, including honest descriptions of the scope of work, property access arrangements, known surface conditions, and any health and safety considerations. Inaccurate job postings that cause a painter to incur additional costs or time may result in legitimate additional charges from the painter.

12.2 Access and Cooperation

Customers must provide the painter with reasonable access to the property and cooperation necessary to complete the work as agreed. Unreasonable delay or refusal of access that prevents job completion may be treated as customer fault for the purposes of any cancellation or dispute resolution.

12.3 Timely Review and Confirmation

When a painter marks a job or milestone as complete, customers must review and respond — either confirming completion or raising specific concerns — within 2 calendar days (48 Hours). Failure to respond within this period, without good reason communicated through the Platform, may be treated by PaintBookCo as deemed acceptance of completion, and PaintBookCo reserves the right to release escrowed funds accordingly.

12.4 Genuine Reviews

Customers may leave reviews and ratings for painters following job completion. Reviews must be honest, accurate, and relate only to the specific job completed. You must not post false, misleading, defamatory, or vengeful reviews. PaintBookCo reserves the right to remove any review that it considers to be in breach of this obligation.

13. Acceptable Use of the Platform

You agree that you will not use the Platform to:

- Violate any applicable law or regulation, including data protection law, anti-money laundering and anti-terrorist financing law, consumer protection law, or employment law
- Harass, threaten, abuse, or discriminate against any other user or PaintBookCo staff
- Post, upload, or transmit any content that is defamatory, obscene, fraudulent, or in violation of any third party's rights
- Attempt to access, interfere with, or disrupt any part of the Platform's technical infrastructure
- Introduce malware, viruses, or any other harmful code to the Platform
- Use automated tools, bots, or scrapers to extract data from the Platform without our written consent
- Impersonate any other person or entity
- Create fake reviews, ratings, or job records
- Use the Platform to market, advertise, or promote services or products other than your painting and decorating services (painters only)

PaintBookCo reserves the right to remove any content, suspend any account, and take any other action we consider appropriate to enforce this Section.

14. Intellectual Property

14.1 PaintBookCo's IP

All intellectual property rights in the Platform, including but not limited to the PaintBookCo brand, logo, software, algorithms, the Paint Vestimator, website design, and content created by PaintBookCo, are owned by or licensed to The PaintBook Company Ltd. Nothing in these Terms grants you any rights in PaintBookCo's intellectual property except the limited right to use the Platform in accordance with these Terms.

14.2 Your Content

You retain ownership of any content you upload to the Platform, including portfolio photographs, job descriptions, and reviews. By uploading content to the Platform, you grant PaintBookCo a non-exclusive, worldwide, royalty-free licence to use, display, reproduce, and distribute that content for the purposes of operating the Platform and marketing PaintBookCo's services (for example, featuring before-and-after photographs in promotional materials with your consent).

You confirm that any content you upload does not infringe the intellectual property rights of any third party and that you have the right to grant the licence described above.

14.3 Proprietary Dataset

Anonymised and aggregated data generated through Platform use (including Paint Vestimator data, job outcome data, and pricing data) is the intellectual property of PaintBookCo and may

be used to improve our services, train our AI tools, and generate market insights. No identifiable personal data is used for these purposes without your consent.

15. Limitation of Liability

Important — Please Read Carefully

This section limits PaintBookCo's liability to you. It does not affect your statutory rights as a consumer under UK law.

Solicitor review recommended for this section before publication.

15.1 PaintBookCo Is a Marketplace Intermediary

PaintBookCo provides a technology platform that connects customers and painters. We are not a party to the Services Agreement between customers and painters. We do not supervise, direct, or control the painting or decorating work performed by painters. We are not responsible for:

- The quality, safety, legality, timeliness, or any other aspect of the painting or decorating services performed by painters
- Any property damage caused by a painter during or after a job
- Any injury to persons arising from painting or decorating work
- A painter's failure to hold adequate insurance for the work performed
- Any dispute between a customer and a painter that cannot be resolved through our dispute resolution process

15.2 Limitation of PaintBookCo's Liability

To the fullest extent permitted by applicable law, PaintBookCo's total liability to you for any claim arising out of or in connection with these Terms or your use of the Platform shall not exceed the greater of:

- The total commission paid to PaintBookCo in connection with the specific job to which the claim relates; or
- £500

PaintBookCo is not liable to you for any indirect, consequential, special, or punitive losses, including loss of profits, loss of income, loss of business, or loss of data, whether or not PaintBookCo has been advised of the possibility of such losses.

15.3 Exceptions

Nothing in these Terms limits or excludes PaintBookCo's liability for:

- Death or personal injury caused by our negligence
- Fraud or fraudulent misrepresentation
- Any liability that cannot be excluded or limited under applicable UK law, including the Consumer Rights Act 2015 and the Consumer Protection from Unfair Trading Regulations 2008

15.4 Paint Vestimator Estimates

PaintBookCo does not warrant the accuracy of any estimate, projection, or visualisation produced by the Paint Vestimator. All estimates are provided for guidance only. PaintBookCo is not liable for any loss arising from a painter or customer acting on Vestimator output.

16. Suspension and Termination

16.1 Termination by You

You may close your account at any time by contacting us at hello@paintbookco.co.uk. Account closure does not affect any obligations or liabilities arising before the date of closure. In particular, any commission owing in respect of jobs accepted before closure remains payable. If you are a painter with active jobs at the time of closure, you must complete those jobs or reach an agreed resolution with the relevant customers.

16.2 Suspension or Termination by PaintBookCo

PaintBookCo reserves the right to suspend or terminate your account at any time and for any reason, including but not limited to:

- Breach of any provision of these Terms
- Submission of fraudulent KYC documents or other fraudulent activity
- Platform circumvention (see Section 11)
- Repeated or serious complaints from other users
- Failure to maintain valid insurance (painters)
- Where required by law or regulatory direction

Where practical, PaintBookCo will give you notice of suspension and the reason for it, and an opportunity to respond, before taking action. In cases of serious breach, fraud, or where immediate action is necessary to protect other users or PaintBookCo's interests, we may act immediately without prior notice.

16.3 Effect of Termination

Upon account termination, your right to use the Platform ceases immediately. Any active job bookings must be resolved before termination is finalised — PaintBookCo will manage this process to protect the interests of the other party. Escrowed funds will be distributed in accordance with the circumstances of termination.

17. Reviews and Ratings

Reviews and ratings help maintain trust and quality on the Platform. Both customers and painters may be invited to submit a review following job completion.

- Reviews must be honest, specific to the job completed, and not defamatory or abusive.
- Painters may not solicit, incentivise, or pressure customers to leave positive reviews.
- Customers may not submit reviews as a form of leverage in a dispute.
- PaintBookCo may remove reviews that it reasonably believes are fake, misleading, or in breach of these Terms.

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- Aggregate ratings displayed on painter profiles are calculated from verified, job-linked reviews only. PaintBookCo does not manipulate or artificially inflate ratings.

18. Data Protection

PaintBookCo processes your personal data in accordance with our Privacy Policy, which is available at paintbookco.co.uk/privacy. By using the Platform, you confirm that you have read and understood our Privacy Policy.

Where you, as a painter, collect and process personal data about customers during the course of a job (for example, storing a customer's contact details or property address), you do so as an independent data controller in your own right. You are responsible for ensuring that your handling of such data complies with UK GDPR. PaintBookCo is not responsible for any data protection breaches by painters in respect of personal data collected outside the Platform.

19. Governing Law and Disputes

19.1 Governing Law

These Terms and any dispute or claim arising out of or in connection with them (including non-contractual disputes or claims) are governed by and construed in accordance with the laws of England and Wales.

19.2 Jurisdiction

You agree that the courts of England and Wales shall have exclusive jurisdiction to settle any dispute or claim arising out of or in connection with these Terms or their subject matter, except where you are a consumer resident in Scotland, Northern Ireland, or Wales, in which case you may bring proceedings in your local courts.

19.3 Consumer ADR

If you are a consumer and have a complaint that has not been resolved to your satisfaction through our internal complaints process, you may have the right to use an Alternative Dispute Resolution (ADR) scheme. We will provide details of any applicable ADR scheme if relevant to your complaint.

20. General Provisions

20.1 Entire Agreement

These Terms, together with the Privacy Policy and Cookie Policy, constitute the entire agreement between you and PaintBookCo in relation to your use of the Platform and supersede all prior agreements, representations, and understandings.

20.2 Severability

If any provision of these Terms is found to be unenforceable or invalid by a court of competent jurisdiction, that provision shall be modified to the minimum extent necessary to make it enforceable, or severed if modification is not possible, without affecting the validity and enforceability of the remaining provisions.

20.3 No Waiver

PaintBookCo's failure to enforce any right or provision of these Terms shall not constitute a waiver of that right or provision.

20.4 Assignment

You may not assign or transfer any of your rights or obligations under these Terms to any other person without our prior written consent. PaintBookCo may assign its rights and obligations under these Terms to any successor entity in the event of a merger, acquisition, or sale of substantially all of our assets.

20.5 Contact

For any questions about these Terms, please contact us at:

The PaintBook Company Ltd

Company Number: 16690724

Email: hello@paintbookco.co.uk

Website: www.paintbookco.co.uk

Registered address: 1, 1 Fenman Mews, Walkden, Manchester, UK. M28 3YU

Appendix: Before-You-Publish Checklist

This document was prepared as a working draft in April 2026 for The PaintBook Company Ltd. It reflects the business model and operational practices described in the PaintBookCo Business Plan (Version as at September 2025). It should be reviewed by a qualified solicitor before publication.